

ANNEX 5 – Final SI-Handler Report Template



Warsaw, 16/03/2026

FINAL SIR REPORT

Log Number: 11366/2025

SI-Handler: Fundamental Rights Office

Key Points

Incident reported: On 26/09/2025 the NGO Sea-Watch reported about a Libyan Coast Guard vessel firing shots at a rescue vessel SEA-WATCH5 in the Libyan search and rescue region (SRR). Subsequently, an article was published describing the incident and informing about Frontex aircraft's involvement. The Fundamental Rights Office launched a SIR procedure in order to clarify the facts, Frontex involvement, and the actions taken by the Libyan authorities and whether these actions were necessary and consistent with a legitimate law enforcement objectives.

Party allegedly involved in the incident: Libyan Coast Guard members, Frontex surveillance aircraft.

Possible violations of fundamental rights enquired:

- Right to life (Article 6 of the International Covenant on Civil and Political Rights) - LIKELY
- Right to liberty and security of person (Article 9(1) of the International Covenant on Civil and Political Rights) - LIKELY

Conclusion and Impact: Based on the information available, the Fundamental Rights Office concludes that the crew of the Libyan Coast Guard vessel hindered the rescue process, likely performed dangerous manoeuvres and fired at least one shot towards SEA-WATCH5. The Office highlights that these actions, as described in the case under scrutiny, were not mandated in any way and are not justifiable by the use of force principles, namely principle of territoriality and necessity, and thus constitute extra-legal acts. Furthermore, they amount to an unlawful interference with freedom of navigation, and an illegal obstruction of rescue operation contrary to the law of the sea and the international duty to render assistance to persons in distress at sea.

The Office further notes that the obstructive actions and interference by the Libyan Coast Guard could have put at risk the lives of the persons on board of the migrant boat and underlines that such actions may result in a violation of Article 6 (right to life) of the International Covenant on Civil and Political Rights. In addition, the Office considers it possible that the actions of the Libyan authorities, aimed to intimidate the crew and/or rescued migrants or endanger their physical integrity, if proven as reported, constitute an intentional threat of potentially lethal force and conduct capable of causing serious psychological harm. And as such may result in a violation of Article 9(1) (right to liberty and security of person) of the International Covenant on Civil and Political Rights.

This incident and earlier Serious Incident Reports (SIRs) make clear that violence and/or endangering of lives by the Libyan authorities during rescue and interception of migrants at sea is a frequent practice. In this context, the Fundamental Rights Office considers it of paramount importance that any cooperation with the Libyan authorities or support for Member States requesting Frontex Multipurpose Aerial Surveillance services, given the knowledge of the risks mentioned above, should be conditional and needs to be accompanied by strong safeguards.

Frontex' Multipurpose Aerial Surveillance Services (Libya): Final Serious Incident Report #1/2026.

Description of the event - Timeline

The Fundamental Rights Office was made aware of the article¹ that was published on 26/09/2025, describing the incident on the same day when a vessel of the Libyan Coast Guard allegedly fired live ammunition at NGO rescue vessel SEA-WATCH5 in international waters, the Libyan search and rescue region (SRR). Reportedly, the Libyan

¹ Libyan militia fires on rescue ship SEA-WATCH5, 26/09/2025: <https://sea-watch.org/en/libyan-militia-fires-on-rescue-ship-sea-watch-5/>;

Coast Guard vessel, a Corrubia class patrol boat marked 660, UBARI, instructed SEA-WATCH5 via radio communication to turn north. SEA-WATCH5 ignored the instructions, as this would have meant aborting the ongoing rescue mission. Shortly after SEA-WATCH5 had rescued 66 people, the Libyan Coast Guard vessel allegedly approached SEA-WATCH5 and fired live ammunition at the rescue vessel. The crew and the rescued people were not harmed. After the attack, SEA-WATCH5 issued a MAYDAY relay that was acknowledged by Frontex surveillance aircraft EAGLE2, and informed relevant authorities. Reporting tools x3, technical equipment, sensitive operational informations

The Fundamental Rights Office consulted Frontex operational reporting, [REDACTED]

[REDACTED]. In addition, it analysed the video recording [REDACTED]

[REDACTED] in the European Surveillance Room² [REDACTED]

Following examination of all available information, the Office reconstructed the following timeline of the incident:

- On 26/09/2025, [REDACTED] reported about received radio transmission with information about NGO rescue vessel SEA-WATCH5 to be performing a rescue operation in position [REDACTED] (Libyan SRR) while engaging with an unknown vessel belonging to the Libyan Coast Guard in vicinity on maritime emergency Channel 16. At that time [REDACTED] was in position [REDACTED] approximately 46 NM from SEA-WATCH5 and 48 NM from Libyan shore.
- At [REDACTED] reported the receipt of a MAYDAY relay from SEA-WATCH5. SEA-WATCH5 relayed being under attack and informed that the Libyan Coast Guard vessel fired shots at them ("small arms fire against SEA-WATCH5"). At that time [REDACTED] was in position [REDACTED], approximately 70 NM from SEA-WATCH5.
- At [REDACTED] deviated from its predefined flight pattern to address the MAYDAY call.
- At [REDACTED] observed SEA-WATCH5 in position at [REDACTED] approximately 5 NM north from the position of the reported rescue operation. No persons were visible on board; the crew and rescued migrants were likely under the tent or inside the rescue vessel.
- At [REDACTED] reported a Libyan Coast Guard vessel in position [REDACTED] approximately 5 NM south from SEA-WATCH5. Libyan Coast Guard vessel was sailing southeast at 21 kts speed.
- At [REDACTED] observed Libyan Coast Guard vessel being in pursuit of a small boat. [REDACTED] the boat was stopped next to the Libyan Coast Guard vessel in position [REDACTED]
- At [REDACTED] the Libyan Coast Guard vessel completed onboarding of approximately 60 people from the boat.

The Fundamental Rights Office launched a SIR procedure in order to clarify the facts, Frontex involvement, and the actions taken by the Libyan authorities and whether these actions were necessary and consistent with a legitimate law enforcement objectives.

Information collected - Contributors/Entities consulted - Follow-up

Internal decision making process

The Fundamental Rights Office [REDACTED]

[REDACTED] reached out to the NGO Sea-Watch. The NGO provided further clarifications of the incident under scrutiny, including the statement by the shipmaster:

- The incident occurred on 26/09/2026, [REDACTED] (Libyan SRR).
- The Libyan Coast Guard vessel was a Corrubia class patrol boat marked 660.
- At [REDACTED] SEA-WATCH5 started a rescue operation of the migrant boat in position [REDACTED]. The information was communicated to all relevant authorities via email [REDACTED]
- At [REDACTED], SEA-WATCH5 received three notifications from the Libyan Coast Guard vessel on maritime emergency Channel 16, requesting SEA-WATCH5 to head north and leave the area. SEA-WATCH5 replied that she would comply after the rescue operation is completed.

² European Surveillance Room is a space in Frontex headquarters, where video and other data directly streamed by surveillance aircrafts and drones from EU external borders, allowing for a real-time monitoring by experts from a variety of countries. [REDACTED]

- At [REDACTED], SEA-WATCH5 altered the course to north and onboarded the last group of survivors. The Libyan Coast Guard vessel approached SEA-WATCH5 conducting dangerous manoeuvres and not keeping secure distance, also threatening the crew, who was recovering a rescue boat from the water.
- The shipmaster [REDACTED] ordered the crew (30 persons) and rescued people (66 persons) to move inside the ship.
- At [REDACTED] a shot was fired from the Libyan Coast Guard vessel in the air/into the water in the direction of SEA-WATCH5. The Libyan Coast Guard vessel was at 40 metres distance abeam to the starboard side of SEA-WATCH5.
- At [REDACTED], SEA-WATCH5 issued a Mayday Relay that was acknowledged by [REDACTED]
- At [REDACTED] arrived on scene. The Libyan Coast Guard vessel eventually pulled back from SEA-WATCH5, but remained in the vicinity, approximately 10 NM from SEA-WATCH5.
- All people on board remained unharmed. No damages were detected to the rescue vessel.
- At [REDACTED] SEA-WATCH5 contacted MRCC Rome, describing the incident.
- At [REDACTED], SEA-WATCH5 contacted the Point of Contact of the German Flag authority and the German Federal Police.

OPERATIONAL REPORTING - JO ITALY 2025

The Fundamental Rights Office consulted JO Italy 2025 operational reporting and confirmed that rescued migrants were disembarked on 29/09/2025, in Naples. At least two migrants [REDACTED] [REDACTED] None of them mentioned shots being fired at the rescue vessel right after the rescue operation. In addition, none of debriefed migrants mentioned their migrant boat being in pursuit by the Libyan Coast Guard at any time of their journey, nor any other involvement of the Libyan authorities. [REDACTED]

Human resources,
reporting tools

SIMILAR INCIDENTS IN CENTRAL MEDITERRANEAN REPORTED TO THE FUNDAMENTAL RIGHTS OFFICE

The Fundamental Rights Office recently and in previous years received reports about similar incidents in Central Mediterranean involving Libyan authorities firing shots during rescue operations:

Modus operandi of criminal
network

- [REDACTED] the Libyan military patrol vessel, identified as TARIQ BEN ZAYED, reportedly opened fire [REDACTED] [REDACTED]
- On 24/08/2025, rescue vessel OCEAN VIKING (operated by the NGO SOS Mediterranee) reportedly came under sustained armed fire from a Libyan Coast Guard patrol vessel, the Corrubia class patrol boat, marked 664, HOUN, suffering significant damages to the rescue vessel³.
- On 23/09/2024, the Libyan Coast Guard vessel, Corrubia class patrol boat 662, MURZUQ, reportedly fired shots in close proximity to and towards the migrant boat, putting the migrants' lives in danger (SIR No 14377/2024).
- On 07/07/2023, the Libyan Coast Guard fired shots in close proximity to the people on board of two NGO rescue speedboats during their rescue operation (SIR No 12939/2023).

Ongoing investigation x2

The Fundamental Rights Office notes, that the patrol boat involved in the incident under scrutiny, UBARI, was donated by Italy to Libya in 2018⁴. The patrol boats, HOUN and MURZUQ, were handed over to the Libyan Coast Guard by the Italian authorities in 2023 as a part of a European project for “anti-trafficking and border control activities, allowing the Libyan Coast Guard to support European operations to secure the waters of the Mediterranean”⁵.

Assessment

The Fundamental Rights Office (1) analysed collected information alleging the Libyan Coast Guard firing shots at the NGO rescue vessel SEA-WATCH5, (2) assessed if the force used in the described circumstances could be legally

³ OCEAN VIKING under heavy fire by Libyan Coast Guard in unprecedented attack against survivors and humanitarian workers, 25/08/2025: <https://www.sosmediterranee.org/sos-med-libyan-attack/>;

⁴ Libyan Coast Guard receives new vessel from Italy, 26/11/2018: <https://libyaobserver.ly/inbrief/libyan-coast-guard-receives-new-vessel-italy>;

⁵ Italy hands over two naval units to Libya for anti-illegal-immigration activities, 24/06/2023: : <https://libyaobserver.ly/news/italy-hands-over-two-naval-units-libya-anti-illegal-immigration-activities>;

described as a legitimate law enforcement goal and thus potentially justifiable, (3) assessed the compliance of the actions taken by involved stakeholders when conducting the rescue operation with international human rights standards and maritime law obligations, including the protection of the right to life and to security of person, and (4) provided insights regarding Frontex involvement in the incident and as regards EU cooperation with the Libyan authorities, in general.

1. THE ANALYSIS OF COLLECTED INFORMATION

The Fundamental Rights Office acknowledges that no direct evidence of performed dangerous manoeuvres and shots being fired were made available to the Office. In addition, none of the debriefed migrants mentioned the Libyan Coast Guard firing shots after they were rescued by SEA-WATCH5. Nevertheless, the Office assessed available information and considers the report provided by the NGO to be credible. This assessment is based on the following:

- The NGO report and shipmaster's statement are supported with communications in real time and entirely corresponds with Frontex operational reporting, including timeline and locations.
- Right after being attacked, the shipmaster issued a Mayday Relay that was acknowledged by Frontex surveillance aircraft, and informed that SEA-WATCH5 was being under attack ("small arms fire against SEA-WATCH5").
Internal procedures of 3rd parties
- After the Libyan Coast Guard vessel approached SEA-WATCH5 performing dangerous manoeuvres and threatening the crew, the shipmaster [REDACTED] ordered all the people on board to move inside the ship. This could explain why [REDACTED] migrants did not mention shots being fired after the rescue, along with possibility that they were not explicitly asked about this by the [REDACTED]. Frontex surveillance aircraft also confirmed that no people were visible on board 30 minutes after the incident.
- The Fundamental Rights Office notes with regret that this is not the first time that the use of firearms or ill-treatment of migrants by the Libyan authorities in search and rescue operations has been reported. In addition to the four incidents involving Libyan authorities firing shots during rescue operations mentioned above, allegations of ill-treatment of migrants by Libyan officers have been documented in other SIRs (e.g., 12634/2022, 13045/2022, 12460/2023, 13654/2024 and 14925/2024). The Office is concerned that such reports could indicate the existence of a practice of frequent non-compliance with international and human rights law during search and rescue operations.
- Similar observations are also reflected in the recent UN report stating that "interceptions by Libyan actors were frequently dangerous and involved threats, hazardous manoeuvres, and excessive use of force, putting people's lives at risk"⁶.

Overall, considering available information and the assessment above, the Fundamental Rights Office concludes that the crew of the Libyan Coast Guard vessel likely performed dangerous manoeuvres and fired at least one shot towards SEA-WATCH5. The Office highlights that the Libyan Coast Guard vessel requested SEA-WATCH5 to leave the area while the rescue of the migrant boat was ongoing. After SEA-WATCH5 completed the rescue and all the migrants onboarded SEA-WATCH5 [REDACTED], the Libyan Coast Guard vessel likely demonstrated force against SEA-WATCH5.

Modus operandi of criminal networks

2. USE OF FORCE: PRINCIPLE OF TERRITORIALITY AND NECESSITY

The Fundamental Rights Office further concludes that in the case under scrutiny the Libyan authorities lacked any general law enforcement competence over SEA-WATCH5, as at the time of the incident, the rescue vessel was located approximately 48 NM from the Libyan coast, i.e. on the high seas, where freedom of navigation and exclusive flag State jurisdiction prevail⁷. Accordingly, any use of force by the Libyan Coast Guard cannot be justified as territorial-sea or contiguous-zone enforcement; the Office assessed and ruled out the following scenarios when the use of force would have been considered legitimate:

- It cannot be justified under the doctrine of hot pursuit, as no pursuit was initiated within Libya's territorial waters or contiguous zone, nor was any order to stop issued therein, as required by

⁶ Office of the United Nations High Commissioner for Human Rights, Business as Usual: Human Rights Violations and Abuses Against Migrants, Asylum-Seekers and Refugees in Libya, February 2026;

⁷ Articles 87, 90 and 92 of the United Nations Convention on the Law of the Sea (UNCLOS, 1982);

international law⁸. The Libyan Coast Guard vessel approached SEA-WATCH5 and/or the migrant boat the first time during the rescue operation and requested to leave the area, approximately 48 NM from the Libyan shore.

- The right of visit on the high seas is likewise inapplicable, as the rescue vessel was neither stateless nor reasonably suspected of piracy, slave trading, or unauthorized broadcasting⁹.
- No applicable UN Security Council resolution authorizes Libya to use force against foreign-flagged humanitarian vessels on the high seas.
- Finally, the available information and circumstances described do not support a claim of self-defence.

The Office further highlights that the search and rescue region confers only responsibility for coordination of search and rescue operations and does not establish sovereignty or law-enforcement jurisdiction¹⁰, and is, as such, irrelevant to enforcement powers in the case under scrutiny. **Accordingly, the performance of dangerous manoeuvres and using firearms against the private rescue vessel by the Libyan authorities, as described in the case under scrutiny, could not be mandated in any way and are not justifiable by the principle of territoriality and under any enforcement framework.**

Even disregarding established facts as regards the legitimacy, such conduct of the Libyan authorities is inconsistent with the standards articulated by UN Special Procedures, which have repeatedly emphasized that maritime law-enforcement actions against migrants or humanitarian actors must comply with international human rights law, including the principles of legality, necessity, proportionality, and precaution in the use of force¹¹. As such, “the use of force must be avoided as far as possible and, where force is unavoidable, it must not go beyond what is reasonable and necessary in the circumstances. Considerations of humanity must apply in the law of the sea, as they do in other areas of international law”¹².

Taking into consideration the core principle that no more force shall be used than is absolutely necessary to reach the legitimate law enforcement objective, the Office considers established that the actions performed by the Libyan authorities, in particular dangerous manoeuvres and using firearms against the private rescue vessel, clearly fail the necessity and proportionality test. It also notes, that above all these principles regulate the manner in which force may be used only where a lawful basis for the use of force exists; where no such legal basis is present, any resort to force is per se unlawful, rendering considerations of necessity or proportionality legally irrelevant, including information on the kind of weapon and/or ammunition that was used or whether it was warning shots and how close the bullets got to the boat.

3. OBLIGATIONS OF THE LIBYAN AUTHORITIES AND FUNDAMENTAL RIGHTS VIOLATIONS

The Fundamental Rights Office notes that under SAR and SOLAS conventions¹³ the Libyan authorities were under obligation to coordinate and assume responsibility to assist the rescue operation. However, instead of supporting the rescue operation, the Libyan Coast Guard vessel actively hindered the process (based on the messages transmitted on maritime emergency Channel 16). More importantly, when the incident took place, SEA-WATCH5 already completed the rescue, of which it duly notified all respective authorities, and was leaving the area. Accordingly, the Office finds that the overall conduct of the Libyan authorities possibly amounts to an unlawful interference with freedom of navigation, and an illegal obstruction of rescue operation contrary to the law of the sea and the international duty to render assistance to persons in distress at sea¹⁴.

Taking the above into consideration, the Fundamental Rights Office emphasises that actors responsible for conducting SAR activities in general should refrain from any use of force or other risky interception practices in the course of a rescue operation (if it is not clearly aimed at the pursuit of a legitimate law enforcement aim such as mentioned above). Therefore, the Office concludes that the aforementioned obstructive actions and

⁸ Article 111(1)-(4), UNCLOS;

⁹ Article 110(1), UNCLOS;

¹⁰ Chapter 2.1.1 and 2.1.9 of the Annex of the International Convention on Maritime Search and Rescue (SAR Convention, 1979), and Chapter V, Regulation 7, of the International Convention for the Safety of Life at Sea (SOLAS Convention, 1974);

¹¹ UN Human Rights Council, Report of the Special Rapporteur on extrajudicial, summary or arbitrary executions, UN Doc. A/HRC/26/36 (2014), paras. 61-63; Basic Principles on the Use of Force and Firearms by Law Enforcement Officials, adopted by the Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, Havana, Cuba, 1990;

¹² International Tribunal for the Law of the Sea, Judgement in the M/V "SAIGA" (No. 2) Case (Saint Vincent and the Grenadines v. Guinea), 1999, para 155;

¹³ Articles 2.1.1 and 2.1.9 of the International Convention on Maritime Search and Rescue (SAR Convention, 1979), and Chapter V Regulation 33 of the International Convention for the Safety of Life at Sea (SOLAS Convention, 1988);

¹⁴ Articles 87(1)(a) and 98, UNCLOS, and Chapter V, Regulation 33, SOLAS Convention;

interference by the Libyan Coast Guard could have put at risk the lives and safety of the persons on board of the migrant boat and underlines that such actions may result in a violation of Article 6 (right to life) of the International Covenant on Civil and Political Rights.

The Fundamental Rights Office acknowledges that extraterritorial application of human rights treaties applies if the effective control principle is established over individuals subjected to the violations by the State¹⁵. While it may be challenging to establish this principle in the present case, nevertheless the Office highlights that UN Human Rights Committee has indicated that jurisdiction may still arise through a “special relationship of dependency”¹⁶. In particular, extraterritorial jurisdiction can exist without physical custody, when the state has operational control, e.g. coordinates the rescue operation, issues instructions to vessels, delays or refuses assistance, and other.

The Fundamental Rights Office highlights that the Libyan Coast Guard actions under scrutiny, namely dangerous manoeuvres and using firearms against the private rescue vessel, lacked a legitimate law enforcement purpose (as assessed above) and possibly aimed to intimidate the crew and/or rescued migrants or endanger their physical integrity. These actions, if proven as reported, constitute an intentional and unlawful threat of potentially lethal force and conduct capable of causing serious psychological harm, and as such may result in a violation of Article 9(1) (right to liberty and security of person) of the International Covenant on Civil and Political Rights. The Office notes, that the Human Rights Committee held that “security of person” extends beyond formal detention and includes protection against intentional, arbitrary threats of violence by State agents, also outside custody; the right to security of person protects individuals against intentional infliction of bodily or mental harm, regardless of detention¹⁷.

4. REGARDING FRONTEX INVOLVEMENT AND EU COOPERATION WITH THE LIBYAN AUTHORITIES

The Fundamental Rights Office commends the actions performed by Frontex in the case under scrutiny (immediate acknowledgement of Mayday Relay and adequate response measures, assistance and communication with the vessel in distress, staying on site and maintaining overwatch of the Libyan Coast Guard vessel) and highlights the conduct as a good practice.

As regards, the EU cooperation with the Libyan authorities, the Fundamental Rights Office notes that like other Libyan Coast Guard patrol boats involved in similar shooting incidents in the past, the patrol boat involved in this incident, UBARI, was also donated to Libya by the Italian authorities. Based on the following assessment, the Office considers it established that namely UBARI was involved in the incident under scrutiny:

- The crew of SEA-WATCH5 identified the Libyan Coast Guard vessel involved in the incident as a Corrubia class patrol boat marked 660, UBARI. Technical equipment x2
- Video of the Libyan Coast Guard vessel recorded by [REDACTED] 30 minutes after the incident confirms the type of the boat.
- Based on key matching features, like the hull form and size, superstructure layout, mast and antenna configuration, aft deck configuration, exhaust/propulsion signature, and side details, also the fact that no other Libyan Coast Guard vessel was reported to be in the vicinity, the Office concludes that [REDACTED] sighted the same boat that was previously involved in the incident.

The Fundamental Rights Office notes that donation of patrol vessels or other maritime assets by EU Member States or EU-funded programmes to the Libyan Coast Guard engages EU responsibility where those assets are foreseeably used to commit violations of fundamental rights during search and rescue operations. As mentioned above, this Office along various International Organisations had established in the past that the Libyan authorities have repeatedly used excessive force during rescue operations, endangered life at sea, and facilitated arbitrary detention and ill-treatment of migrants following interceptions, including during rescue operations.

In such circumstances, the transfer of vessels constitutes more than neutral assistance: under customary international law, a State that knowingly provides aid or assistance which contributes to the commission of internationally wrongful acts by another State incurs responsibility, particularly where the assistance is essential

¹⁵ The Human Rights Committee held that the human rights obligations apply extraterritorially whenever a State exercises “power or effective control” over individuals, including situations in international waters, General comment No. 31 (2004), para. 10;

¹⁶ A.S., D.I., O.I. and G.D. v. Italy, App. No. CCPR/C/130/D/3042/2017 (UN Human Rights Committee, 2021), para. 7.;

¹⁷ General comment No. 35 on Article 9 (2014), para. 9; Delgado Paez v. Colombia (Communication No. 195/1985);

to the conduct in question¹⁸. This duty of heightened due diligence is reinforced under EU law, which requires that cooperation and capacity building measures in border management - including equipment donations and requests for Frontex Multipurpose Aerial Surveillance services - be suspended where there is a serious risk of fundamental rights violations¹⁹, a risk that has repeatedly substantiated in the Libyan context.

Hence, the Fundamental Rights Office highlights that EU cooperation with the Libyan authorities in the field of anti-trafficking and border control activities, including requests for Frontex Multipurpose Aerial Surveillance services, must be conditional, with effective continuous monitoring, and genuine suspension mechanisms. Otherwise, the continued cooperation (either donation of vessels or other support and coordination) used in abusive maritime operations risks engaging the responsibility of both the States and EU institutions for facilitating violations of the right to life, prohibition of ill-treatment, and non-refoulement.

Final conclusion - Proposals - Lessons learned

Based on the information available, the Fundamental Rights Office concludes that the crew of the Libyan Coast Guard vessel hindered the rescue process, likely performed dangerous manoeuvres and fired at least one shot towards SEA-WATCH5. The Office highlights that these actions, as described in the case under scrutiny, were not mandated in any way and are not justifiable by the use of force principles, namely principle of territoriality and necessity, and thus constitute extra-legal acts. Furthermore, they amount to an unlawful interference with freedom of navigation, and an illegal obstruction of rescue operation contrary to the law of the sea and the international duty to render assistance to persons in distress at sea.

The Office further notes that the obstructive actions and interference by the Libyan Coast Guard could have put at risk the lives of the persons on board of the migrant boat and underlines that such actions may result in a violation of Article 6 (right to life) of the International Covenant on Civil and Political Rights. In addition, the Office considers it possible that the actions of the Libyan authorities, aimed to intimidate the crew and/or rescued migrants or endanger their physical integrity, if proven as reported, constitute an intentional threat of potentially lethal force and conduct capable of causing serious psychological harm. And as such may result in a violation of Article 9(1) (right to liberty and security of person) of the International Covenant on Civil and Political Rights.

This incident and earlier Serious Incident Reports (SIRs) make clear that violence and/or endangering of lives by the Libyan authorities during rescue and interception of migrants at sea is a frequent practice. In this context, the Fundamental Rights Office considers it of paramount importance that any cooperation with the Libyan authorities or support for Member States requesting Frontex Multipurpose Aerial Surveillance services, given the knowledge of the risks mentioned above, should be conditional and needs to be accompanied by strong safeguards.

The Fundamental Rights Office notes and commends the practices already implemented by Frontex, and further recommends:

Sensitive operational information x2

1. [REDACTED]
2. [REDACTED]

The Fundamental Rights Office further recommends to the Member States cooperating with the Libyan authorities in the field of anti-trafficking and border-control:

1. Establish a conditionality mechanism based on heightened due diligence, requiring that all border management cooperation - such as trainings, capacity building, and equipment donations - be subject to prior and ongoing assessment of the recipient authority's compliance with fundamental rights and with the possibility of suspending support where violations occur.

¹⁸ Article 16 of the Responsibility of States for Internationally Wrongful Acts, United Nations, International Law Commission, 2001;

¹⁹ Articles 10, and 46, Regulation (EU) 2019/1896 on the European Border and Coast Guard.